

		that the Optum Defendants were strangers to the LOA, the facts alleged in the FAC do not warrant such a conclusion. Accordingly, the demurrer to this cause of action is SUSTAINED. <i>Case Management Conference is set December 11, 2026 at 8:30 a.m. in Department C44.</i> Defendants shall provide notice of this ruling.
6	Kiani vs. Koffey 2025-01484637	Motion to Seal (ROA 247) Plaintiff Joe E. Kiani’s Motion to Seal is DENIED. Moving Party has failed to identify an overriding interest that overcomes the right of public access to the material Plaintiff seeks to seal. The hourly rates and time spent on a motion to compel are routinely disclosed in the public record in conjunction with motions to compel discovery responses. Furthermore, nothing in the Discovery Act requires a party seeking the imposition of monetary sanctions to disclose the negotiated hourly rate between the attorney and client. The relevant inquiry for purposes of determining the amount of monetary sanctions is the reasonable value of the time expended in conjunction with the discovery motion practice. Thus, all Plaintiff is called to do is identify facts justifying the amount of monetary sanctions sought. The particular hourly rate agreed upon between Kiani and his lawyers is not necessary information to make such a determination. The clerk is directed to return the unredacted declaration of Youzhihang Deng in support of the Motion to Compel Further Responses to Requests for Production and for Sanctions (ROA 234) to Plaintiff. Plaintiff has 10 days to file a revised declaration without redactions that either (1) provides the information regarding the hourly rates charged and time spent on the motions or (2) provides some other factual basis for the Court to assess the request for monetary sanctions. Plaintiff shall provide notice.
7	Kiani vs. Masimo Corporation 2024-01426785	Motion to Seal (ROA 512) Plaintiff Joe E. Kiani’s Motion to Seal is DENIED. Moving Party has failed to identify an overriding interest that overcomes the right of public access to the material Plaintiff seeks to seal. The hourly rates and time spent on a motion to compel are routinely disclosed in the public record in conjunction with motions to compel discovery responses. Furthermore, nothing in the Discovery Act